

On the ownership, portability and accreditation of research

Cite as: Martin Paul Eve, "On the ownership, portability and accreditation of research", *eve.gd*: Martin Paul Eve, July 28, 2016, <https://doi.org/10.59348/31v37-2yv15>.



One of the aspects of the Stern review that has attracted the most attention from my Twitter stream is the non-portability of research outputs. What this means is that institutions cannot poach staff from elsewhere and use their outputs to return to REF.

Now, there's a problem with Stern at the moment in that he doesn't say what will happen with ECR/Ph.D. student outputs when they move to their first post with a research element. I'm sure that HEFCE will fix this, though, in implementation. Taking that into account, I think this is a very positive step. Why?

1. It will change the point at which institutions hire staff to the beginning (and throughout) REF cycles. This means that institutions will actually be accountable for the research environment that they create and must strive for conducive research environments. At the moment, "environment" is supposed to be about measuring the cultures that produce good research. If, however, you just so happen to have lots of cash and can hire in talent at the last minute, then all this ever means is that environment is money. In future, though, if institutions create cultures where researchers find it hard to do their work, it will only be the institution itself that will suffer (aside from the poor researchers working there).
2. Small institutions can't be screwed over by big institutions taking the work that researchers conducted at their institutions at the last minute.

3. Institutions have to take more of a risk here in spotting researchers they think will do well, carving the way for new up-and-comers to slot in.

But people are often nervous about this. Why?

1. Because the current hiring paradigm is so geared towards REF and research it can be hard to imagine what a new hiring environment looks like. In the new post-Stern setup, institutions hire people who look like they will produce top-quality future work on the basis of what those people have done before, but they have to do so knowing that they can't disproportionately profit off that past work. This is the case across the board at all institutions, so there's no real reason to fear this, as far as I can see.
2. Because the notion of "ownership" that we have around research and scholarship is odd. Most people assume that they own their research and scholarship. In fact, this is not the case in the majority of university IP contracts in the UK from what I have seen. Indeed, most of these state that research is to be classified as "work for hire" but that the institution waives all rights back to the academic so that he/she may publish the work. People get very tetchy around this and point out that they often work on their research outside of contracted hours, that their institution is claiming their work etc. etc. Yes, but my comeback to this is threefold: a.) most research also relies on the resources that institutions provide, such as library books and journal article access; b.) most researchers do not feel the same in proprietorial terms about their work when they sign over the whole copyright to publishers; c.) I couldn't do my research work without the salary the institution pays me, regardless of how much time I spend on it outside of formal hours. (If I had my way, my institution would own the right to publish my work on its own website and would stand up on my behalf against restrictive copyright-transfer contracts.) In other words, what researchers really want from publishing (besides dissemination) is to be *credited* for what they have done. The new system, I think, provides as good a way to credit people and to hire them as the old one (not that this saying much, I guess) but it also changes the incentives for institutions to treat researchers better and to create a better environment.

In fact, the main problem I see from this is institutions arguing over which institution should be able to submit an output. Say a book takes three years to write and one year before acceptance a researcher moves institutions. Where is the output allocated? The first institution had 2/3rds of the

work time but the point of acceptance was at the second institution. Do researchers try to game this by holding back publications?

The other challenge is how to balance early career people (who I assume WILL be able to transfer their publications for a first hire, maybe?) against those in existing positions (who might be severely disadvantaged vs an ECR otherwise).

As ever, the devil will be in the details of implementation...